

****29.08.2022****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed in July 2022 an investigation into the operator Alpha Bank Romania SA and found a violation of the provisions of Article 29 and Article 32 paragraph (1) letter b), paragraph (2) and paragraph (4) of the General Data Protection Regulation.

As such, the operator was sanctioned with an administrative fine in the amount of 4,935.10 lei (equivalent to 1,000 EURO).

The investigation was initiated following a notification of a data security breach that was sent by Alpha Bank Romania SA, based on the provisions of Article 33 of the General Data Protection Regulation. Thus, according to the information mentioned in the notification form, the data processing security breach occurred as a result of a document being mistakenly sent to another recipient via the WhatsApp application.

During the investigation, it was found that this breach led to unauthorized disclosure or unauthorized access to certain personal data, such as: name and surname, personal identification number (CNP), position and signature, type of credit, contract number and signing date, credit period, and date of the last due payment, affecting a total of 4 identified individuals.

The National Supervisory Authority found that Alpha Bank Romania SA did not implement adequate technical and organizational measures to ensure an appropriate level of confidentiality and security corresponding to the risk of processing and did not take sufficient measures to ensure that any individual acting under the authority of the operator and having access to personal data only processes them at the operator's request.

At the same time, pursuant to Article 58 paragraph (2) letter d) of the General Data Protection Regulation, the following corrective measures were imposed on the operator:

- Review and update of the technical and organizational measures implemented as a result of the assessment regarding the risk to the rights and freedoms of individuals, including work procedures related to the protection of personal data, by implementing and transmitting to the responsible persons instructions regarding the prohibition of using employees' personal equipment in client relations (e.g., mobile phone) for unauthorized communication/chat online applications by the Bank;
- Adoption of measures regarding the training of individuals acting under the authority of the operator, including regarding the risks and consequences involved in the disclosure of personal data.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****